

		parties. There is no indication that any essential element of the parties' agreement was reserved for future agreement or further negotiation. Ms. Arevalo argues that the stipulation was not enforceable because numerous terms were outstanding, such as a survey, consent by the mortgage holder, a subordination agreement, and the specific terms and conditions of the easement. Ms. Arevalo argues that it is clear that material terms were still subject to negotiation. However, this argument is not persuasive. The evidence shows that the parties agreed to do what was necessary to achieve subordination of the deed of trust encumbering Ms. Arevalo's property and that the Clintons would be granted an easement for purposes of maintenance and repair. Those terms are sufficiently definite. The fact that the written instruments were not yet reduced in writing does not render the settlement agreement unenforceable or lacking in definite terms. (See Blix Street Records, Inc. v. Cassidy (2010) 191 Cal.App.4th 39, 48 ["When parties intend that an agreement be binding, the fact that a more formal agreement must be prepared and executed does not alter the validity of the agreement."].) Further, any survey and consent by the mortgage holder would be in furtherance of the parties' agreement for an easement and subordination of the deed of trust, rather than additional terms that require further negotiation. Considering all the above, Defendants' Motion pursuant to Code of Civil Procedure section 664.6 is GRANTED. Defendants to submit a proposed judgment within 15 days. Moving party to give notice.
111	Bian vs. Latreill 21-01390510	Anti SLAPP Motion

		The hearing on Plaintiff/Cross-Defendant Wenqiang (“Wayne”) Bian’s Special Motion to Strike (Anti-SLAPP) is CONTINUED to 08/18/2026 at 10:00 a.m. in Department C25. The Court invites Cross-Complainant LaTreill to submit a sur-reply of no more than five pages addressing Bian’s contention that LaTreill must meet a heightened “clear, unambiguous, and explicit” standard of proof in order to successfully oppose the motion. (See Reply at pp.4-6.) The brief shall be filed and served no later than 9 court days prior to the continued hearing date. No other briefing is allowed. Clerk to give notice.
113	Chisam vs. Yaz Limo and Parking Service 24-01439553	Motion for Summary Judgment and/or Adjudication Defendants Yaz Limo and Parking Service and Jacques Kazzi (“Defendants”) moves for an order granting summary judgment or adjudication in favor of Defendants on the first cause of action for negligence/negligence per se and second cause of action for negligent infliction of emotional distress. Plaintiffs Patricia Ann Chisam and Helene Francine Handler (“Plaintiffs”) oppose the motion. First, pursuant to the parties’ stipulation, the motion is MOOT as to the second cause of action for negligent infliction of emotional distress pursuant to the party’s stipulation and the First Amended Complaint. (See ROAs 81 and 84.) Moreover, the parties agree that, although the motion for summary judgment was filed as to the original complaint, the motion shall apply to the first cause of